

Justification for Other Than Full and Open Competition (Over SAT)

1. In accordance with Federal Acquisition Regulation (FAR) Subpart 6.303-2 Department of Administration and Finance, Administrative Services Division requests the Division of Contracts and Grants solicit only this source for the following supplies or services required to meet the needs of MCC:

Source: Washington Metropolitan Area Transit Authority (WMATA)

Services: SmartBenefits Transit services for Millennium Challenge Corporation (MCC) eligible employees

Estimate:

WMATA Cost Estimate							
Contract Year	Start	End	Commuters	Transit Only	Parking	Transit and Parking	Annual Cost
Base	3/22/2025	3/21/2026	175	\$ 280.00	\$104.00	\$ 384.00	\$ 806,400.00
OY1	3/22/2026	3/21/2027	175	\$ 325.00	\$114.00	\$ 419.00	\$ 879,900.00
OY2	3/22/2027	3/21/2028	175	\$ 325.00	\$124.00	\$ 440.00	\$ 924,000.00
OY3	3/22/2028	3/21/2029	175	\$ 350.00	\$134.00	\$ 475.00	\$ 997,500.00
OY4	3/22/2029	3/21/2030	175	\$ 375.00	\$144.00	\$ 510.00	\$ 1,071,000.00
						Total	\$ 4,678,800.00
*Current 2025 IRS allowable is \$325 for transit and \$104 for parking (at or near a station that accepts the transit pass).							
**IRS allowable is not to exceed and is not an agency required amount.							

2. Nature of the action Being Approved

Current contract is expiring on March 21, 2025, and MCC needs to establish a new contract to meet the guidelines which requires Federal Agencies to implement a transportation fringe benefit program that provides qualified Federal employees a “transit pass” that is equivalent to their daily commute, not to exceed the allowable by law (IRS 15-B). The contract would allow MCC access to utilize the SmartBenefits Program System to register employees.

Contract Period of Performance would be March 22, 2025 – March 21, 2030 (base year and 4 option years).

3. Identify the statutory authority permitting other than full and open competition.

NOTE: Select the **single exception to full and open competition which fits your circumstances**. See FAR 6.302 for further explanation of each exception.

☒ Pursuant to 41 U.S.C. 3304(a)(1), FAR 6.302-1, Only one Responsible Source and No Other supplies of services will satisfy Agency requirements

☐ Pursuant to 41 U.S.C. 3304(a)(2), FAR 6.302-2, Unusual and Compelling Urgency

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- ☐ Pursuant to 41 U.S.C. 3304(a)(3), FAR 6.302-3, Industrial Mobilization; Engineering, Developmental, or Research Capability; or Expert Services
- ☐ Pursuant to 41 U.S.C. 3304(a)(4), FAR 6.302-4, International Agreement
- ☒ Pursuant to 41 U.S.C. 3304(a)(5), FAR 6.302-5, Authorized or Required by Statute
- ☐ Pursuant to 41 U.S.C. 3304(a)(6), FAR 6.302-6, National Security
- ☐ Pursuant to 41 U.S.C. 3304(a)(7), FAR 6.302-7, Public Interest

WMATA is the only source that can meet the requirement for SmartBenefit Transit Services.

Executive Order 13150, titled "Federal Workforce Transportation is the statute that requires federal agencies to provide transit benefits to federal employees.

4. Further describe the proposed contractor's unique qualifications or the nature of the acquisition (i.e. emergency, statutory requirement to use one source) that meets the use of the authority cited.

WMATA is the only source that provides region-wide transit benefit services to employees.

5. Describe efforts made to ensure that offers were solicited from as many potential sources as practical, including whether the action was synopsisized as required by FAR Subpart 5.2.

None.

6. Describe the market research conducted (reference FAR Part 10) or state the reason market research was not conducted.

Market research concluded that WMATA is the only authorized entity for the SmartBenefits Transit Program.

7. Cite any other facts supporting other than full and open competition for this acquisition.

None.

8. List all sources, if any, who expressed in writing an interest in the acquisition.

None.

9. State the actions, if any, the agency will take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

None.

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10. Certification of the Managing Director of the Program Office:

I certify that the supporting technical data, which form the rationale for a sole source acquisition, is complete and accurate to the best of my knowledge and belief.

[Redacted]

11. Contracts & Grant Division Contracting Officer Certification:

Attached is a price determination that the anticipated cost to the Government is fair and reasonable. I certify that this justification is accurate and complete to the best of my knowledge and belief.

[Redacted]

12. Managing Director, Contracts & Grants Division:

[Redacted]

(Actions exceeding \$1,000,000)

13. Office of General Counsel/Competition Advocate Approval:

[Redacted]